

PASSED

CHICKASAW TRIBAL LEGISLATURE
Permanent Resolution Number 40-011
Amendments to Title 17 of the Chickasaw Nation Code
(Domestic Violence Offenses)

WHEREAS, in accordance with Article VII, Sections 4 and 7 of the Constitution of the Chickasaw Nation, the Chickasaw Tribal Legislature shall enact rules and regulations pertaining to the Chickasaw Nation, and shall make decisions pertaining to the acquisition, leasing, disposition and management of real property, subject to federal law, and

WHEREAS, in accordance with Article XI, Section 1 of the Constitution of the Chickasaw Nation, the Governor shall perform all duties appertaining to the office of Chief Executive. He shall sign official papers on behalf of the Nation, and

WHEREAS, the Chickasaw Tribal Legislature has previously enacted rules and regulations for criminal jurisdiction and criminal offenses, and

WHEREAS, the Chickasaw Tribal Legislature desires to amend those rules and regulations.

NOW, THEREFORE, BE IT RESOLVED, that the Chickasaw Tribal Legislature hereby authorizes and approves that any charges filed prior to the effective date of this Resolution against any person pursuant to any stricken or changed provisions herein shall continue and be unaffected by this Resolution.

BE IT FURTHER RESOLVED, that the Chickasaw Tribal Legislature hereby authorizes and approves that the sentence of any person convicted of an offense herein stricken or changed shall remain unaffected by this Resolution.

BE IT FURTHER RESOLVED, that the Chickasaw Tribal Legislature hereby authorizes and approves that the provisions of this Resolution shall become effective upon publication in the Chickasaw Nation Code.

BE IT FURTHER RESOLVED, that the Chickasaw Tribal Legislature hereby authorizes and approves the following amendments to Title 17, Chapter 5, Article E, of the Chickasaw Nation Code, all other sections and parts of sections to remain the same (additions are shown in red and deletions are stricken through:

SECTION 17-505.1 **DOMESTIC VIOLENCE.**

A. It shall be unlawful to:

1. commit an Assault, Battery or Assault and Battery upon a Domestic or Dating Partner; or,

2. commit Assault, Battery or Assault and Battery upon a parent, a foster parent, a child, a sibling, a person otherwise related by blood or marriage, a person who formerly lived in the same household as the defendant, a person living in the same household as the defendant, or any combination of such persons.

3. ~~engage in any sexual act by force or coercion; or~~

4. ~~use or offer to use force or violence.~~

B. A Domestic or Dating Partner within this Article means:

1. a current or former spouse or intimate partner;
2. a person with whom the perpetrator shares a child in common;
3. a person who is cohabitating with or has cohabitated with the perpetrator as a spouse or intimate partner; or
4. a person who is or has been in a social relationship of a romantic or intimate nature with the perpetrator, as determined by the length of the relationship, the type of relationship, and the frequency of interaction between the persons involved in the relationship.

C. For purposes of this Article, a Domestic or Dating Partner does not include a neighbor, co-worker, casual acquaintance, or the ordinary fraternization between persons in a business or social context unless otherwise set out above.

D. Domestic Violence shall be punishable by a fine not exceeding five thousand dollars (\$5,000) or imprisonment not exceeding one (1) year, or both such fine and imprisonment.

E. A second or subsequent conviction of Domestic Violence, a conviction of any other offense in the Article, or any other equivalent conviction in tribal, Federal, State, or municipal courts, shall be punishable by a fine not exceeding fifteen thousand dollars (\$15,000) or imprisonment not exceeding three (3) years, or both.

F. In addition to any other penalty specified by this Section, the Court may require a defendant to participate and complete a batterer's intervention program or similar program.

SECTION 17-505.2**DOMESTIC VIOLENCE BY STRANGULATION.**

A. It shall be unlawful to:

1. ~~willfully~~ commit an Assault and Battery by strangulation or attempting to cause strangulation upon a Domestic or Dating Partner.
2. commit an Assault and Battery by strangulation or attempting to cause strangulation upon a parent, a foster parent, a child, a sibling, a person otherwise related by blood or marriage, a person who formerly lived in the same household as the defendant, a person living in the same household as the defendant, or any combination of such persons.

B. For purposes of this section, “strangulation” means any form of asphyxia, including but not limited to, asphyxia characterized by the closure of the blood vessels or air passages of the neck as a result of external pressure on the neck however slight or the closure of the nostrils or mouth as a result of external pressure on the head.

~~C. A Domestic or Dating Partner shall mean the same as within Section 17-505.1.~~

~~D.~~ Domestic Violence by Strangulation shall be punishable by a fine not less than one thousand dollars (\$1,000) nor more than fifteen thousand dollars (\$15,000), or by imprisonment for a mandatory period not less than sixty (60) days nor more than three (3) years, or by both.

~~E.~~ In addition to any other penalty specified by this Section, the Court may require a defendant to participate and complete a batterer’s intervention program or similar program.

SECTION 17-505.3**DOMESTIC VIOLENCE WITH PRIOR PATTERN OF PHYSICAL ABUSE.**

A. It shall be unlawful for any person who has a prior pattern of physical abuse to: ~~commit Assault, Battery or Assault and Battery upon a Domestic or Dating Partner.~~

1. commit an Assault, Battery, or Assault and Battery upon a Domestic or Dating Partner.
2. commit an Assault, Battery, or Assault and Battery upon a parent, a foster parent, a child, a sibling, a person otherwise related by blood or marriage, a person who formerly lived in the same household as the defendant, a person living in the same household as the defendant, or any combination of such persons.

B. For purposes of this section, “prior pattern of physical abuse” means two or more separate incidents, including the current incident, occurring on different days and each incident relates to an act constituting Domestic Violence as defined by this Article against the same victim, where proof of each incident prior to the present incident is established by the sworn testimony of a third party who was a witness to the alleged physical abuse or by other admissible direct evidence that is independent of the testimony of the victim.

C. Domestic Violence with Prior Pattern of Physical Abuse shall be punishable by a fine not less than one thousand dollars (\$1,000) nor more than fifteen thousand dollars (\$15,000), or by imprisonment for a mandatory period not less than sixty (60) days nor more than three (3) years, or by both.

D. In addition to any other penalty specified by this Section, the Court may require a defendant to participate and complete a batterer’s intervention program or similar program.

SECTION 17-505.4

DOMESTIC VIOLENCE IN PRESENCE OF MINOR.

A. It shall be unlawful to: ~~commit Assault, Battery or Assault and Battery upon a Domestic or Dating Partner while in the presence of a minor.~~

1. ~~commit an Assault, Battery, or Assault and Battery upon a Domestic or Dating Partner while in the presence of a minor.~~
2. ~~commit an Assault, Battery, or Assault and Battery upon a parent, a foster parent, a child, a sibling, a person otherwise related by blood or marriage, a person who formerly lived in the same household as the defendant, a person living in the same household as the defendant, or any combination of such persons while in the presence of a minor.~~

B. In this section, “in the presence of a minor” means in the physical presence of a child under the age of eighteen (18); or having knowledge that a child under the age of eighteen (18) is present and may see or hear an act of domestic violence. For the purpose of this section, a “child” may be any child whether or not related to the victim or the defendant.

C. Domestic Violence in Presence of Minor shall be punishable by a fine not exceeding five thousand dollars (\$5,000) or imprisonment not less than sixty (60) days nor more than one (1) year, or both such fine and imprisonment.

SECTION 17-505.5

DOMESTIC VIOLENCE AGAINST A PREGNANT WOMAN.

A. It shall be unlawful to: ~~commit Assault, Battery or Assault and Battery against a Domestic or Dating Partner who is pregnant while having knowledge of the pregnancy.~~

1. commit an Assault, Battery, or Assault and Battery upon a Domestic or Dating Partner who is pregnant while having knowledge of the pregnancy.
2. commit an Assault, Battery, or Assault and Battery upon a parent, a foster parent, a child, a sibling, a person otherwise related by blood or marriage, a person who formerly lived in the same household as the defendant, a person living in the same household as the defendant, or any combination of such persons who is pregnant while having knowledge of the pregnancy.

B. Domestic Violence Against a Pregnant Woman shall be punishable by a fine not exceeding five thousand dollars (\$5,000) or imprisonment not less than sixty (60) days nor more than one (1) year, or both such fine and imprisonment.

SECTION 17-505.6

DOMESTIC VIOLENCE WITH A DANGEROUS WEAPON.

A. It shall be unlawful to: ~~commit Assault, Battery or Assault and Battery upon a Domestic or Dating Partner with any sharp or dangerous weapon.~~

1. commit an Assault, Battery, or Assault and Battery upon a Domestic or Dating Partner with any sharp or dangerous weapon.
2. commit an Assault, Battery, or Assault and Battery upon a parent, a foster parent, a child, a sibling, a person otherwise related by blood or marriage, a person who formerly lived in the same household as the defendant, a person living in the same household as the defendant, or any combination of such persons with any sharp or dangerous weapon.

B. Domestic Violence with a Dangerous Weapon shall be punishable by a fine not less than one thousand dollars (\$1,000) nor more than fifteen thousand dollars (\$15,000), or by imprisonment for a mandatory period not less than sixty (60) days nor more than three (3) years, or by both.

SECTION 17-505.7

AGGRAVATED DOMESTIC VIOLENCE.

A. It shall be unlawful to: ~~commit Assault and Battery upon a Domestic or Dating Partner that results in Serious Bodily Injury as defined by Section 17-503.4(B).~~

1. commit an Assault, Battery, or Assault and Battery upon a Domestic or Dating Partner that results in Serious Bodily Injury as defined by Section 17-503.4(B).
2. commit an Assault, Battery or Assault and Battery upon a parent, a foster parent, a child, a sibling, a person otherwise related by blood or marriage, a

person who formerly lived in the same household as the defendant, a person living in the same household as the defendant, or any combination of such persons that results in Serious Bodily Injury as defined by Section 17-503.4(B).

B. Aggravated Domestic Violence shall be punishable by a fine not less than one thousand dollars (\$1,000) nor more than fifteen thousand dollars (\$15,000), or by imprisonment for a mandatory period not less than sixty (60) days nor more than three (3) years, or by both.

SECTION 17-505.8

DOMESTIC VIOLENCE BY COMMITTING A CRIMINAL OFFENSE.

A. It shall be unlawful to: ~~commit any criminal violation within the Chickasaw Nation Code upon a Domestic or Dating Partner; or,~~

1. ~~commit any criminal violation within the Chickasaw Nation Code upon a Domestic or Dating Partner.~~
2. ~~commit any criminal violation within the Chickasaw Nation Code upon a parent, a foster parent, a child, a sibling, a person otherwise related by blood or marriage, a person who formerly lived in the same household as the defendant, a person living in the same household as the defendant, or any combination of such persons.~~

B. Domestic Violence by Committing of a Criminal Offense shall be punishable in accordance with the range of punishment for the underlying criminal offense.

C. Nothing in this section shall allow a Defendant to be charged with both an offense under this Section and the underlying criminal offense.

D. In addition to any other penalty specified by this Section, the Court may require a defendant to participate and complete a batterer's intervention program or similar program.

CHICKASAW TRIBAL LEGISLATURE
Permanent Resolution Number 40-011
Amendments to Title 17 of the Chickasaw Nation Code
(Domestic Violence Offenses)

Explanation:

This resolution amends Title 17 to include domestic violence crimes committed against a parent, a foster parent, a child, a sibling, a person otherwise related by blood or marriage, a person who formerly lived in the same household as the defendant, a person living in the same household as the defendant, or any combination of such persons.

Presented by:

Legislative Committee,
Chickasaw Tribal Legislature

Executed in regular session of the Chickasaw Tribal Legislature, Meeting at Ada, Oklahoma, on May 19, 2023, by a vote of 11 ayes, 0 nays, and 0 abstentions.

Connie Barker

Chairperson
Chickasaw Tribal Legislature

Karen Goodnight

Secretary
Chickasaw Tribal Legislature

Concur: Bill Anoatubby
Bill Anoatubby, Governor
The Chickasaw Nation

Date: MAY 19 2023